

Court No. - 29

Case :- WRIT - C No. - 40097 of 2009

Petitioner :- Sonu

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Tiwari

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Shri Pankaj Shukla, learned counsel appearing for the Electricity Department has produced before us copies of the checking report and the provisional assessment order.

Let a counter affidavit be filed explaining whether the provisional assessment orders are served upon the petitioner and that final assessment was made in terms of the provisions of Para 8.1 (b) of the U.P. Electricity Supply Code, 2005 before issuing recovery certificate. The counter affidavit be filed within 10 days. The rejoinder affidavit may be filed within three days, thereafter. List on 27th August, 2009.

Until then, the recovery of the electricity dues in pursuance of the citation dated 6.7.2009 shall remain stayed.

Order Date :- 6.8.2009

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Court No. - 29

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Petitioner Counsel :- Neeraj Tiwari

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 1 and 2 prays for and is granted a week's further time for filing counter affidavit.

Rejoinder affidavit may be filed by the next date fixed in the matter.

List this case on 10th September, 2009.

Interim order already granted, if operative today, will continue to remain operative till the next date of listing.

Order Date :- 27.8.2009

Ajeet

Court No. - 29

Case :- WRIT - C No. - 40097 of 2009

Petitioner :- Sonu

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Tiwari

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

List in the next cause list. Interim order is extended till 09.10.2009.

Order Date :- 10.9.2009

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Court No. - 9

Case :- WRIT - C No. - 40097 of 2009

Petitioner :- Sonu

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Tiwari

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Yogesh Chandra Gupta, J.

Heard learned counsel for the petitioner.

Stay order already passed by this Court, is extended till further orders.

Order Date :- 28.10.2009

Salim

Court No. - 36

Case :- WRIT - C No. - 40097 of 2009

Petitioner :- Sonu

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Tiwari

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Rajesh Chandra, J.

Passed over on the request of Sri Neeraj Tiwari as it has been stated that he has gone back on account of some personal work.

Order Date :- 27.10.2010

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Court No. - 38

Case :- WRIT - C No. - 40097 of 2009

Petitioner :- Sonu

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Neeraj Tiwari

Counsel for Respondent :- C.S.C., Pankaj Kumar Shukla

Hon'ble Abhinava Upadhya, J.

Hon'ble Rajiv Gupta, J.

Heard Sri Rajendra Kumar Mishra, learned counsel for the respondent nos. 1 and 2.

This is a writ petition against a recovery citation dated 6.7.2009 issued by Tehsildar. The recovery citation is pursuant to the electricity theft. The allegation of the petitioner is that without any provisional assessment straightway a recovery citation has been issued. This Court by its order dated 6.8.2009 while calling for the counter affidavit stayed the recovery. This order of the Court was never extended, although it is stated that counter affidavit has been filed but the same is not on record.

We are of the considered view that pursuant to the allegation of electricity theft, the petitioner has remedy of filing a representation before the Executive Engineer. In case the petitioner approaches the Executive Engineer, the Executive Engineer will consider the claim of the petitioner and pass appropriate order in accordance with law as far as possible within a period of one month from the date a certified copy of this order along with representation is presented before it.

With the aforesaid observations/ directions, the writ petition is finally disposed of.

Order Date :- 14.9.2018

C. MANI

(Rajiv Gupta, J.) (Abhinava Upadhya, J.)